

PURCHASE AND SALE AGREEMENT FOR VESSEL

THIS PURCHASE AND SALE AGREEMENT (this "Agreement") is made and entered into this ____ day of March 2025 (the "Effective Date"), by and between OWNER OF RECORD (hereinafter referred to as "Seller") and Benito Irastorza and/or assigns (hereinafter referred to as "Buyer"), pursuant to which the parties do hereby acknowledge and agree to the following:

W I T N E S S E T H:

WHEREAS, Seller is the current owner of a 2020 88ft Sanlorenzo SX88 Vessel with Hull Number SLZ00029J920, which includes all gear, machinery, equipment, furniture, fuel, consumables, and all registered or unregistered dinghy/tenders, jetski/waverunner, toys, articles and appurtenances onboard the Vessel and/or included on the Vessel listing specification as of the date of this Agreement (the "Vessel")

WHEREAS, Seller is desirous of selling and the Buyer is desirous of purchasing the Vessel.

NOW, THEREFORE, in consideration of the foregoing, the mutual covenants set forth herein and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. PURCHASE PRICE AND DEPOSITS.

(a) Purchase Price. The total purchase price for the Vessel shall be Four Million Five Hundred Thousand and No/100th Dollars (\$4,500,000.00) (the "Purchase Price"). The Purchase Price is payable as follows:

(b) Deposits.

(i) Four Hundred Fifty Thousand Dollars and No/100th (\$450,000.00) (the "Deposit") to be paid within three (3) business days following Seller's execution of this Agreement to the escrow account of Quesada Valdes, PLLC, Trust Account (the "Escrow Agent").

(ii) The remaining balance of the Purchase Price, subject to closing adjustments and proration's and after crediting the Deposit, shall be paid in immediately available funds at the Closing.

2. SURVEY OPTION; ACCEPTANCE OF VESSEL; CONDITIONS OF SURVEY. Buyer's obligation to purchase the Vessel is subject to Buyer's satisfaction, in Buyer's sole discretion, with trial run and survey of the Vessel. Buyer shall have until the "Accept/Reject Date", as said date is set forth herein, to conduct a survey on the Vessel and inspect same, including but not limited to vessel, engines, generators, oil samples of engine and transmission, copies of service logs, maintenance logs and service receipts since Seller has owned the Vessel (the "Inspection Period"). The Accept/ Reject Date shall be April

15, 2025 (the "Accept/Reject Date"). During the Inspection Period: (a) Buyer will select the surveyor, (b) the surveyor will be the sole party responsible for any errors or omissions with respect to the survey, (c) Seller shall make the Vessel available and Buyer shall complete the trial run and survey as soon as practicable, (d) Seller shall pay all running expenses for, and assume the risks associated with the trial run, and Buyer shall pay all costs of the survey, including associated costs, e.g, haul-out, dry dock, and subcontractors' charges, (e) Buyer and its surveyor will be solely responsible for determining the scope of the survey and the trial run to assess the Vessel's conformity with Buyers requirements, and (f) Buyer shall deliver written notice for rejection or acceptance of the Vessel to Seller on or before the Accept/Reject Date. If Buyer fails to provide written notice of acceptance of the Vessel by the Accept/Reject Date, then it shall be conclusively presumed that the Buyer has rejected the Vessel. Upon Buyer's written acceptance of the Vessel, Seller will not make any use of the Vessel pending Closing, defined herein, except to move the Vessel to the Delivery location, and the parties shall proceed to Closing. If Buyer rejects or is deemed to reject the Vessel, after all expenses incurred on Buyer's behalf have been paid, (i) Escrow Agent shall return Deposit to Buyer, (ii) this Agreement will terminate, and (iii) the parties will be released from any further liability hereunder.

3. CLOSING. The closing of the sale (the "Closing Date") of the Vessel under this Agreement shall take place on April 22, 2025, or at such other time as may be agreed by the parties in writing. Seller shall deliver the Vessel at the RICKENBACKER together with all gear, machinery, equipment and all other articles and appurtenances on board the Vessel as of the date of signature of this Agreement by the Buyer ("Items"), except for those Items included in a written exclusion list ("Exclusion List") delivered to Buyer within two (2) days of Effective Date. If unacceptable, Buyer shall then have two (2) business days from receipt of the Exclusion List to deliver, at Buyer's option, written notice of termination of this Agreement to Seller. In such event, after all expenses incurred in on Buyer's behalf have been paid, (i) the Agreement shall terminate, (ii) the parties and Brokers will be released from any further liability hereunder, and (iii) the Deposit shall be returned to Buyer. Buyer's failure to deliver timely notice of termination will constitute Buyer's acceptance of the Exclusion List Seller shall deliver to Brokers all necessary documents for transfer of title to Buyer on or before the Closing Date. Final payment due at the time of Closing shall be in the form of cleared funds. The preferred and accepted manner is for final payment by bank-to-bank wire transfer. Any other form of payment must be made early enough to allow funds to be cleared on or before the Closing Date. Any funds due Broker(s) for storage, insurance, repairs and/or other items accrued to the Seller's account shall be deducted from the Seller's net proceeds prior to disbursement of funds to Seller.

4. BROKER/BROKER'S FEE. The parties acknowledge that the SELLING BROKER agency and the LISTING BROKER agency are the only brokers procuring this Agreement. The term "Broker" as used herein refers to the Selling Agency and Listing Agency, collectively. Notwithstanding that only one party may be responsible for payment of Brokers' fees, the parties agree that the Listing Agency is agent for the Seller only (and owes no fiduciary responsibilities to the Buyer) and the Selling Agency is agent only for the Buyer (and owes no fiduciary responsibility to the Seller). Notwithstanding the foregoing, if a Broker is both the Listing Agency and Selling Agency, the parties consent

to Broker acting as a dual-agent in this transaction for both Buyer and Seller, and Broker shall perform only the duties expressly set forth herein and no implied duties or obligations shall be read into the Agreement. The parties further agree that Broker may disclose to both parties facts known to Broker materially affecting the Vessel's value or desirability. Broker shall not, without Owner's consent, disclose to Buyer that Seller is willing to sell the Vessel for an amount less than the asking price. The parties each represent and warrant that neither has employed or dealt with any broker, agent or finder in carrying out the negotiations relating to the sale of the Vessel to Buyer and acknowledge that Broker is a third-party beneficiary to this Agreement.

5. SELLER'S REPRESENTATIONS; REQUIRMENTS FOR CLOSING. Seller represents and warrants that it will transfer to Buyer good and marketable title to the Vessel, free and clear of all debts, claims, maritime or common law liens, security interests, encumbrances, excise taxes, and any other applicable taxes, customs' duties, or tariffs due to any state, county, regulatory and/or taxing authority of any kind whatsoever (collectively "Encumbrances"). No less than two (2) business days before Closing, Seller shall deliver to Buyer (a) satisfactory evidence of title, (b) proof of payment or removal of Encumbrances, (c) a guaranty and indemnification from Seller guaranteeing Seller's representations and warranties in this Paragraph 5, (d) if Seller is a legal entity, a personal guaranty and indemnification from Seller's beneficial owner(s) guaranteeing Seller's representation and warranties in this Paragraph 5, (e) copies of any other documents necessary for the transfer of good and marketable title to Buyer. Seller shall pay any cost associated with and shall cooperate fully to obtain any authorization for sale required from any governing authority. Any party which is legal entity will provide to the other prior Closing (i) proof that it is in good standing under the laws of the State or other jurisdiction under which the entity has been formed, (ii) a consent action or resolution demonstrating the entity's duly authorized decision to purchase or sell the Vessel as well as authority of the individual delivery or accepting the Vessel and/or executing this Agreement and/or purchase and sale documents, (iii) a power of attorney demonstrating the authority of the individual delivering or accepting the Vessel, and (iv) as to Seller, its wire information.

6. RISK OF LOSS; FORCE MAJEUR. Seller will bear the risk of loss of or damage to the Vessel if damaged, subsequent to Buyer's acceptance, and the necessary repairs will cost less than five percent (5%) of the Purchase Price, and require fewer than thirty (30) days to complete. If the Vessel is damaged to an extent greater than 5% of the Purchase Price subsequent to Buyer's acceptance, then Buyer may: (i) terminate this Agreement with the same consequences as if Buyer had rejected the Vessel, and the Deposit will be returned the Buyer and the parties released from any liability hereto; or (ii) elect to proceed with the Closing, whereby any insurance proceeds shall be assigned to Buyer and the cost of repairs shall be deducted from the Purchase Price to the extent not covered by insurance. Either party's obligation to perform will be suspended to the extent required to accommodate unforeseeable events beyond that party's reasonable control ("Force Majeure Events"), including without limitation, acts of God, acts of terrorism, strikes, lockouts, riots, acts of war, fire, communication line failures, computer viruses, power failures, accidents, tropical storms, hurricanes, earthquakes, or other natural disasters. If a Force Majeure Event occurs, the time periods referred to in this Agreement, including, without limitations, the Closing Date, will be deemed extended by the time necessary to permit the affected party to perform in accordance with the Agreement;

provided, however, if the Force Majeure Event delays the Closing Date for a period of at more than thirty (30) days, either party may terminate this Agreement with the same consequences as if Buyer had rejected the Vessel.

7. DEFAULT. Notwithstanding anything herein to the contrary, if the Closing is not consummated due to Buyer's non-performance, including, without limitation, failure to pay the Balance or execute all documents necessary for completion of the purchase by the Closing Date: (i) the Deposit shall be retained by (or if the Deposit was not paid, Buyer shall pay a like amount to Seller as liquidated and agreed damages, as consideration for the execution of this Agreement, in full settlement of all claims between the parties, and (ii) the parties will be relieved of all obligation under this Agreement. If the Closing is not consummated due to Seller's non-performance, the Deposit, and any other money paid or deposited by Buyer, pursuant to this Agreement will be returned to Buyer upon demand, without thereby waiving any action for damages resulting from Seller's breach, or Buyer will have the right to specific performance, Seller agrees that specific performance is reasonable in light of the uniqueness of the Vessel, difficulty of proof of loss, and the inconvenience or impossibility of otherwise obtaining an adequate remedy.

8. SALES AND USE TAXES. Sales or use taxes payable on Buyer's purchase of the Vessel, if applicable are Buyer's responsibility, and Buyer shall pay taxes due to Seller at Closing. Buyer hereby indemnifies Seller and Broker for the payment of same. As per this Agreement, Property tax is the responsibility of the Owner of Record on January 1st of any given year. This contract does not implement any prorating of Property Tax, unless otherwise stated in ADDITIONAL TERMS. Seller and Buyer are advised to take this into account when agreeing on the terms of purchase.

9. REPRESENTATIONS AND WARRANTIES. SELLER BELIEVES THAT ANY INFORMATION THEY HAVE PROVIDED ON THE VESSEL IS GOOD AND CORRECT AND OFFER THE INFORMATION IN GOOD FAITH, BUT DO NOT AND CANNOT GUARANTEE THE ACCURACY OF SUCH INFORMATION. UPON CLOSING, BUYER WILL BE DEEMED TO HAVE ACCEPTED THE VESSEL IN ITS "AS IS" CONDITION. SELLER HAS GIVEN NO WARRANTY, EITHER EXPRESSED OR IMPLIED, AND MAKE NO REPRESENTATION AS TO THE CONDITION OF THE VESSEL, ITS FITNESS FOR ANY PARTICULAR PURPOSE OR MERCHANTABILITY, ALL OF WHICH ARE DISCLAIMED.

10. FINANCING. Buyer's obligation is not contingent upon Buyer's obtaining financing. Buyer represents that it will arrange financing, if necessary. Buyer acknowledges that Broker(s) has made no representations or warranties with respect to Buyer's ability to obtain financing, Buyer's qualifications to obtain any type of mortgage on the Vessel, or Buyer's ability to document the Vessel so that it is a "vessel of the United States" for purposes of the Ship Mortgage Act. 46 U.S.C. 911 et seq.

11. COUNTERPARTS. The parties may sign this Agreement in a number of identical counterparts, each of which will be deemed an original (including signatures evidenced via facsimile, email or other electronic means) as if the signatures were upon the same instrument.

12. BINDING EFFECT; CONTEMPORANEOUS CONTRACT; FUTURE SALE. This Agreement is binding on all parties, their heirs, personal representatives and/or assigns. Seller shall not sell the Vessel or enter into any contract for the sale of the Vessel while this Agreement is in effect. If a sale is not consummated per the terms of this Agreement, and the Buyer and Seller enter into a contract between themselves within two years after this Agreement is terminated for the transfer of ownership of the Vessel, the Seller agrees to pay the Broker an amount identical to the commission the Broker would receive under the terms of the listing contract.

13. ESCROWED FUNDS. The parties acknowledge that Quesada Valdes, PLLC, shall be the Escrow Agent for this transaction (the "Escrow Agent"). The parties further acknowledge that (a) Escrow Agent will not be responsible for the Deposit until the funds have cleared into Escrow Agent's account, (b) Escrow Agent shall hold the Deposit in escrow once the funds have cleared and any other funds received by either party will be held in trust for that party, and (c) in any dispute involving any such funds held by Escrow Agent shall be indemnified for legal fees and costs relating in any way to such dispute, including those incurred in any appeals (which obligation is secured by a lien in the escrowed funds).

14. MISCELLANEOUS. Notwithstanding anything herein to the contrary, this Agreement, including its exhibits and schedules, is the entire agreement between the parties pertaining to the subject matter hereof and supersedes all prior and contemporaneous negotiations, agreements, representations, warranties, and understandings pertaining thereto, be it written, oral, or otherwise. Buyer and Seller hereby jointly and severally indemnify and hold the Broker and Escrow Agent harmless from any and all third party claims, demands, causes of action, losses, liabilities, damages and judgments, arising in connection with the Broker's undertaking pursuant to the terms and conditions of this Agreement. Should Broker become a party to any litigation involving this Agreement, Broker shall be reimbursed for its costs and attorney's fees, at all pretrial, trial and appellate levels, by the party or parties found to have breached this Agreement. If any term, condition, or provision of this Agreement is held to be unenforceable for any reason, it shall, if possible, be interpreted to achieve the intent of the parties to this Agreement to the extent possible rather than avoided. In any event, all other terms, conditions and provisions of this Agreement shall be deemed valid and enforceable. It is understood that there are no other duties, obligations, liabilities, or warranties, implied or otherwise, except as set forth herein. This Agreement may not be amended or modified, except in writing, signed by both parties. Notice and delivery given by or to the attorney or broker representing any party shall be as effective as if given by or to that party. All notices must be in writing and may be made by mail, telefax, email or personal delivery, but proof of delivery shall be required for such to be effective. Buyer may assign this Agreement without Seller's consent, to an entity owned/controlled by Buyer. No claim or right arising out of this Agreement can be waived or discharged by one party, in whole or in part, unless in writing, nor shall any waiver be applicable except in the specific instance for which it is given. Any proceeding relating to this Agreement will be brought in the courts of the state and county of the main office of the Selling Broker, and each of the parties irrevocably submits to the exclusive jurisdiction of each such court, waives any objection it may now or hereafter have to venue or to convenience of forum, and agrees not to bring any proceeding relating to this Agreement in any other court. The Additional Terms in the

info box above shall be incorporated herein.

The parties, having been advised to consult legal counsel with respect to this Agreement hereby waive trial by jury with respect to any claim relating to this Agreement, whether against each other or against the Broker as a third party beneficiary. In the event any action is filed, the prevailing party shall recover it's reasonable attorney's fees and costs from non-prevailing party.

15. GOVERNING LAW AND DISPUTE RESOLUTION. Any dispute involving this agreement will be resolved in the courts located in the State of Florida. This agreement will be governed by and interpreted according to the law of the State of Florida, regardless of its principles of conflicts-of-laws and the proceedings will be conducted in Miami, Florida. In the event of any dispute between the parties hereto arising out of the subject matter of the Agreement, the prevailing party shall be entitled to recover reasonable expenses, attorney's fees and costs for all pretrial, trial and appellate proceedings.

IN WITNESS WHEREOF, the parties do hereby agree to be bound by the terms and conditions hereof and have execute this Purchase and Sale Agreement as of the date first above written.

BUYER:

SELLER:

Name: _____
Date: _____

Name: _____
Date: _____